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LP Kilts LLC v. 1851 Slauson LLC, et al.

HEARING RE: PARTIAL MOTION FOR NEW TRIAL

MOVING PARTY: Defendant/Cross-Complainant 1851 Slauson, LLC

RESPONDING PARTY(S): Cross-Defendant Rick Luthra.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This action arises out of a dispute between LP Kilts, LLC (LP Kilts) and 1851 Slauson, LLC, (Slauson) over a property in Northridge that LP Kilts leased from Slauson in order to operate a sports bar. LP Kilts brought this action alleging that Slauson and affiliated parties made false representations to induce it to lease the property and otherwise breached the lease agreement.

Slauson cross-claimed against LP Kilts and affiliated parties, including Rick Luthra (Luthra) contending that it was they who breached the agreement, as well as that Luthra made false representations to Slauson. Slauson also alleged that the cross-defendants had intentionally set fire to the property to cause the lease to terminate, or alternatively, that they negligently caused the fire.

The matter was tried before a jury, which on February 27, 2020, returned a verdict for Slauson on all of LP Kilts' causes of action, as well as for Slauson as to its Cross-Complaint on breach of contract and false representation, awarding Slauson $100,000 in contract damages and $10,000 for the false representation. The jury found against Slauson on its additional cross-claims for intentional and negligent property damage pertaining to the fire.

On February 23, 2022, the Court granted Slauson's motion for judgment notwithstanding the verdict with respect to the contract damages, amending the judgment against to reflect $554,702.50 in back due rent in place of the $100,000 awarded by the jury. As a result, the Court deemed the concurrent motion for partial new trial moot. Luthra appealed the final judgment arguing the motion for judgment notwithstanding the verdict was improper.

On October 30, 2025, the Court of Appeals issued its final ruling on Luthra's appeal reversing in part and remanded with directions stating, "[t]he judgment is reversed as to the amount of damages and the matter is remanded for consideration of Slauson's motion for a partial new trial." (Appeal - Opinion B319033.) Thereafter, on January 21, 2026, the remittitur was issued.

On February 4, 2026, this action was assigned to this Department by the Supervising Judge of Civil in Department 1. A Status Conference re: Remittitur was originally scheduled for April 30, 2026, and was continued to July 30, 2026, to allow each side is to file briefing explaining what they want the Court to do.

On July 30, 2026, the Court scheduled this instant Hearing Re: Partial Motion for New Trial. The Court now having considered the original filings, the appellate opinion, and the supplemental filings rules as follows.

TENTATIVE RULING:

Slauson's Motion for Partial New Trial is CONDITIONALLY DENIED unless Luthra formally accepts and consents to an additur of $454,702.50 to the previous award on economic damages. In other words, if Luthra consents that the previous award of $100,000 as to economic damages is increased to $545,702.50, then the motion for partial new trial as to economic damages only as to the Cross-Complaint will be DENIED. However, if Luthra does not timely and formally consent to this additur, the motion for partial new trial as to economic damages only as to the Cross-Complaint shall be GRANTED.

Luthra shall have thirty (30) days from the date of the issuance of this Order during which hy may consent to the increase in damages set forth above. Failure to respond shall be deemed a rejection of the additur, and a new trial limited to the issue of Slauson's economic damage shall be automatically granted. (Code Civ. Proc., § 662.5, subd. (b).) If Luthra chooses to accept the reduction of damages, He shall concurrently serve and submit to the Court a proposed amended judgment reflecting the modified judgment amount, as to himself only. (Code Civ. Proc., § 662.5, subd. (c).)

Slauson to give notice to all interested parties, including LP Kilts and Popal.

DISCUSSION:

Motion to For Partial New Trial

I. Legal Standard

"A new trial is a re-examination of an issue of fact in the same court after a trial and decision by a jury, court, or referee." (Code Civ. Proc., § 656.)

The verdict may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party:

. . .

5. Excessive or inadequate damages.

. . .

When a new trial is granted, on all or part of the issues, the court shall specify the ground or grounds upon which it is granted and the court's reason or reasons for granting the new trial upon each ground stated.

A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision.

The order passing upon and determining the motion must be made and entered as provided in Section 660 and if the motion is granted must state the ground or grounds relied upon by the court, and may contain the specification of reasons. If an order granting such motion does not contain such specification of reasons, the court must, within 10 days after filing such order, prepare, sign and file such specification of reasons in writing with the clerk. The court shall not direct the attorney for a party to prepare either or both said order and said specification of reasons.

(Code Civ. Pro. § 657.)

In any civil action where after trial by jury an order granting a new trial limited to the issue of damages would be proper, the trial court may in its discretion:

(1) If the ground for granting a new trial is inadequate damages, issue a conditional order granting the new trial unless the party against whom the verdict has been rendered consents to the addition of damages in an amount the court in its independent judgment determines from the evidence to be fair and reasonable.

(Code Civ. Pro. § 662.5, subd. (a).)

II. Analysis

A. The Scope of This Hearing

Following the guidance of the Appellate Court, it is apparent that this Court must determine the concurrently motion for partial new trial filed on January 10, 2022, now that the motion for judgment notwithstanding the verdict has been reversed. Indeed, both Luthra and Slauson agree that this motion is present before this Court. Instead, it appears that the parties disagree as to whether the motion should be granted, or to the extent that such motion should be granted.

B. The Motion for Partial New Trial

As an initial matter, this motion was fully briefed in 2022, prior to Luthra's appeal. However, in recent briefing, Luthra addressed two procedural issues not considered in the original briefings.

First, Luthra argues that Code of Civil Procedure, section 660, renders this motion untimely. However, "section 660 was not intended to operate, or apply, in settings where, following an appeal from the judgment, the appellate court remands the case with directions to the trial court to conduct further proceedings on a motion for new trial." (Barrese v. Murray (2011) 198 Cal.App.4th 494, 508.) Here, the appellate court remanded this case with directions that "the matter is remanded for consideration of Slauson's motion for a partial new trial." (Appeal - Opinion B319033.) Therefore, Code of Civil Procedure, section 660, does not apply to this current motion.

Second, Luthra argues that “The Court should also permit supplemental briefing on the merits. The 2022 briefing predates the Court of Appeal’s opinion, which is now law of the case and reshapes the analysis; the case has since been reassigned to this court; and the present briefing order is directed to the scope of the remand, not to the merits of the motion.” (Supp. Brief at p. 11:13-18.) However, the Court of Appeals opinion does not reshape the analysis of the partial motion for new trial because it provided no instructions as to the merits of this motion. The underlying motion has been fully briefed, albeit by Luthra’s prior counsel. The evidence and briefing stand as submitted and the parties are free to make any renewed arguments at the scheduled hearing.

Now, the Court addresses the underlying motion considering the original briefings, the appellate court decision, and the recent supplemental briefings.

a. Timeliness of the Motion

A motion for new trial must be made:

Within 15 days of the date of serving notice of entry of judgment by the clerk of the court pursuant to Section 664.5, or service upon them by any party of written notice of entry of judgment, or within 180 days after the entry of judgment, whichever is earliest; provided, that upon the filing of the first notice of intention to move for a new trial by a party, each other party shall have 15 days after the service of that notice upon them to file and serve a notice of intention to move for a new trial.

(Code of Civ. Pro. §659, subd. (2).)

Here, notice was given by the Court on December 17, 2021. (12/17/22 Notice of Entry of Judgment.) Thereafter, Luthra filed a notice of intent to move for a new trial. (12/27/21 Notice of Intent to Move for New Trial.) Therefore, Slauson had until January 11, 2022, to file the instant motion. (See Code of Civ. Pro. §659, subd. (2). [“upon the filing of the first notice of intention to move for a new trial by a party, each other party shall have 15 days after the service of that notice upon them to file and serve a notice of intention to move for a new trial.”]) Slauson timely filed their intent to move for a new trial on January 10, 2022. (1/10/2022 Notice of Intent to Move for New Trial.)

b. The Merits of the Motion

This motion was based on Slauson’s argument that the jury’s award of $100,000 for a breach of contract cause of action was inadequate and contradicted by the evidence. Slauson highlights that while LP Kilts “contested issue of liability for the unpaid rent, Kilts never contested 1) the amount of rent due under the Lease from February 1, 2016 through December 16, 2017 was anything other than the $554,702.50 reflected in Trial Exhibit 491, or 2) that it never paid any rent for that period.” (Mot. at p. 4:13-17.)

In fact, as confirmed in Kilts’ own Trial Exhibits 238 and 239, (where, on page 1 of each, Kilts listed the “rent payments to Slauson,”) Kilts admitted that it made no rent payments to Slauson from and after February 2016.

The uncontested evidence was that Section 9.4 of the Lease, terminated the Lease 60 days following “total” destruction by the arson fire on October 17, 2017 (Trial Exhibit 403, Section 9.4).

The uncontested evidence was that the arson fire occurred on October 17, 2017 (Trial Exhibit 455) and that counsel for Slauson gave the written notice specified in Section 9 of the Lease (Trial Exhibit 454) that the damages to the premises from the arson fire had triggered termination of the Lease under Section 9.4, i.e. the Lease “shall terminate 60 days following such destruction.”

(Mot. at p. 4:17-28.)

The Court agrees. This economic damage arises from the breach of contract action whereby Slauson argued that LP Kilts failed to pay rent pursuant to a lease agreement. Special Verdict Number 4 indicated the jury found that LP Kilts and Slauson entered into a contract, i.e. the lease agreement. (Special Verdict No. 4 at Q1.) Slauson fulfilled its obligations of the lease agreement. (Special Verdict No. 4 at Q2.) However, LP Kilts failed to do something that the lease agreement required it to do and Slauson was harmed as a result. (Special Verdict No. 4 at Q4-5.) The jury found the economic loss totaled $100,000. (Special Verdict No. 4 at Q7.)

However, it is apparent there is no basis for this $100,000 award because it is clear the economic damage sought was the total unpaid rent. The Jury Instructions clearly state:

If you decide that 1851 Slauson proved its claim against LP Kilts for breach of contract, you also must decide how much money will reasonably compensate it for the harm caused by the breach. . . The purpose of such damages is to put 1851 Slauson in as good a position as it would have been if LP Kilts had performed as promised . . . 1851 Slauson claims damages for the amount of unpaid rent due to 1851 Slauson at the time the lease was terminated on December 17, 2017.

(2/25/20 Jury Instructions at pp. 43-44.)

Indeed, the evidence is undisputed and/or uncontroverted that the unpaid rent totaled $554,702.50. The evidence in support of this figure is Trial Court Exhibits 238, 239, 403, 454, 455, and 491. (See Denis Decl.) No evidence, opposition, nor supplemental briefing challenges this figure. Instead, the opposition are aimed at justifying the $100,000 award. The Court rejects these arguments. The simple fact is that the unpaid rent was $554,702.50 and, as a result, the jury made a clear error in the lesser award of $100,000.

In the supplemental opposition, Luthra argues that “a successor [judge] acting on a cold record cannot perform the thirteenth-juror weighing of credibility these grounds require; a successor “may weigh evidence and determine its sufficiency to support the judgment, but cannot change the trial judge’s findings and enter a different judgment on conflicting evidence.” (City of Long Beach v. Wright (1933) 134 Cal.App. 366, 371.).” (Supp. Brief at p. 12:17-23.) However, the Court need not weigh evidence or determine credibility of witnesses when, here, it is undisputed and/or uncontroverted that the unpaid rent totaled $554,702.50. There is no evidentiary conflict for this Court to resolve when there is zero evidence to weigh against a finding that the unpaid rent totaled $554,702.50. Indeed, this independent conclusion is consistent with the trial judge’s findings. (See March 1, 2022, Order, [“Had the court been required to rule on the Motion for New Trial, it would have conditionally granted same and sought consent for an additur for the economic loss damages proven by Slauson.”])

Additionally, Luthra states “[t]he jury’s award finds support in evidence—the broker commission Slauson paid at the inception of the lease—that bears on the parties’ original dealings, not on a mechanical computation of unpaid rent, and the Court of Appeal has confirmed the jury could rely on it. (Opn. at 4.).” (Supp. Brief at p.14:1-5.) First, as discussed above, the damage sought was inarguably the unpaid rent. (See 2/25/20 Jury Instructions at pp. 43-44.) This commission was not part of the damage sought by Slauson and is wholly unconnected to LP Kilt’s obligations under the lease agreement. Further, Luthra misrepresents the Court of Appeals opinion in supplemental opposition. The Court of Appeals did not confirm the jury could rely on such evidence as the Court of Appeals never addressed the adequacy of the evidence. Page 4, as Luthra cites, merely provides background to the prior proceedings. Instead, the Court of Appeals decision simply discussed the proper procedure for determining the sufficiency of the evidence. This is a substantial misinterpretation of the opinion.

c. The Scope of the New Trial

Luthra, for the first time on appeal and again through supplemental briefing argues that, should this motion be granted, the scope of the new trial should be expanded to reconsider LP Kilts and therefore, Luthra’s liability. Luthra argues that “[a] new jury asked to decide only the amount of rent owed, without the context that produced the award, could not fairly reconstruct the determination the first jury made.” (Supp. Brief at p.14:6-7.) However, this issue of liability was already decided. LP Kilts breached the lease agreement. (Special Verdict No. 4 at Q4-5.) All that remains is a new trial on the total economic damage suffered by Slauson. Given the undisputed nature of the amount of unpaid rent, the new trial appears merely perfunctory. There is no evidence to suggest that a reconsideration of LP Kilts or Luthra's liability is necessary in determining the amount of unpaid rent. Instead, it appears that Luthra is simply seeking to relitigate his own liability instead of aiding the jury in a proper determination of the economic damage suffered by Slauson arising from his breach.

d. Conclusion

In short, after considering the evidence submitted at trial, this Court is convinced from the entire record before it, including reasonable inferences therefrom, that the jury clearly should have reached a different verdict. (Code Civ. Proc., § 657.) Specifically, it appears that a new trial on the issue of contractual damages is warranted due to an award of inadequate damages, based on the undisputed evidence. (Ibid.) Therefore, considering that an order granting a new trial limited to the issue of damages would be proper, the Court exercises its discretion pursuant to Code of Civil Procedure section 622.5, subdivision (a)(1) and issues a conditional order granting a new trial unless Luthra consents to an addition in damages. In the Court's independent judgment based on the undisputed evidence submitted at trial, the Court determines that a fair and reasonable amount of economic damages to be $554,702.50. This figure represents the clear amount of rent improperly withheld by the LP Kilts under the lease agreement.

C. Attorney's Fees and Abstract of Judgment

Luthra makes additional requests as a part of his supplemental briefing.

First, Luthra seeks to "[v]acate the attorney-fee award, which fell with the reversal of the judgment to which it was added, without prejudice to a new fee motion should Slauson obtain a new final judgment." (Supp. Brief at p. 16:11-13.) As an initial matter, "a disposition that reverses a judgment automatically vacates the costs award in the underlying judgment even without an express statement to this effect." (Ducoing Management, Inc. v. Superior Court (2015) 234 Cal.App.4th 306, 314.) Indeed, this Court may reconsider the award of attorney fees after a limited reversal on damages such as this. (Zagami, Inc. v. James A. Crone, Inc. (2008) 160 Cal.App.4th 1083, 1097 ["In light of the limited reversal of the judgment on the issue of damages only, we conclude the trial court must consider anew, at the conclusion of the retrial of damages, the prevailing party issue."] However, a new motion for attorneys' fees and costs would likely increases the overall award considering the time and effort spent on this action, sans the appeal, since 2022 including filing new motions for fees. If the additur is consented to, a rehearing on attorney's fees appears to simply increase all parties' costs. This issue will be further discussed at the hearing.

Second, Luthra seeks the Court order "the abstract of judgment released or expunged unless and until a new final judgment is entered." (Supp. Brief at p. 16:14-16.) As Luthra indicates in his briefing, "in the ordinary course of events when the judgment is vacated by court order the lien will also cease to exist, because the effect of a vacating order is to eliminate the judgment. [Citation] Once vacated, the status of the parties that existed prior to the judgment is restored and the situation then prevailing is the same as though the order or judgment had never been made." (Bulmash v. Davis (1979) 24 Cal.3d 691, 697.) This requires no further Court order.

IT IS SO ORDERED.

Dated: August 21, 2026 ___________________________________

Randolph M. Hammock

Judge of the Superior Court